

25VECV00418 25VECV00418

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV00418 Hearing Date: August 13, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RITZA S. TURCIOS SERRANO, an individual,

Plaintiff,

vs.

AMERICAN

HONDA MOTOR CO., INC., a California Corporation, and DOES 1 through 10,
inclusive,

Defendant.

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CASE NO.: 25VECV00418

ORDER

GRANTING IN PART DEFENDANT'S MOTION TO TAX COSTS

I.

BACKGROUND

This lemon law action arises out of Plaintiff Ritza S. Turcios Serrano's ("Plaintiff") September 20, 2021, purchase of a 2019 Honda Civic ("Subject Vehicle"). (See Compl., ¶ 8.) Plaintiff brings this action against Defendant American Honda Motor Co., Inc. ("Defendant"), alleging the Subject Vehicle contained or developed various engine and suspension system defects. (See *id.* at ¶ 10.)

Defendant moves to strike Plaintiff's costs.

II.

PROCEDURAL

HISTORY

On January

23, 2025, Plaintiff filed her Complaint alleging (1) Violation of Song-Beverly Act - Breach of Express Warranty; (2) Violation of Song-Beverly Act - Breach of Implied Warranty; and (3) Violation of The Song-Beverly Act Section 1793.2.

On January

23, 2025, the parties were served with the Lemon Law Addendum.

On March 5,

2025, Defendant filed an Answer.

On April

2, 2026, Plaintiff filed a Notice of Settlement.

On July 16,

2026, Defendant filed the instant Motion.

As of August

10, 2026, no opposition has been filed.

III.

LEGAL STANDARD

The Song-Beverly Consumer Warranty Act authorizes

recovery of costs “reasonably incurred by the buyer.” (Civ. Code § 1794(d).)[1] “If the items appearing in a cost bill appear to be

proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs.” (Id.)

“A prevailing party who claims costs must serve and

file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party,

attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Rule of Court, rule 3.1700(a)(1).)

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4)”. (See *id.*, rule 3.1700(b)(1).)

“If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. [citations.] The burden then shifts to the objecting party to show them to be unnecessary or unreasonable.” (*Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 693.) “In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable.” (*Foothill De Anza Cmty. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 2930.) “Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court.” (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [citation.] However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

IV.

ANALYSIS

Defendant argues

Plaintiff's costs should be stricken in their entirety because Plaintiff's sole attestation to the veracity of the Memorandum of Costs is upon knowledge and belief but they submit no supporting affidavit. (See Mot. at 3:15-18, 4:27-5:2.)

The Court

declines to strike Plaintiff's Memorandum of Costs in its entirety for failure to submit a supporting affidavit as the verified Memorandum of Costs is prima facie evidence the costs listed were necessarily incurred. (See Doe, 37 Cal.App.5th at 693; Nelson, 72 Cal.App.4th at 131; Adams v. Ford Motor Co., 2011) 199 Cal.App.4th 1475, 1486-1487.)

Alternatively,

Plaintiff moves to strike the following costs:

A.

Post 998-Offer Costs

Defendant moves

to strike deposition costs of \$1,581.25 from April 6, 2026, and expert witness fees of \$1,031.25 from April 3, 2026. (See Mot. at 5:18-22.) Defendant argues per the parties 998 Offer, Defendant was to pay "Plaintiff's statutory costs and expenses under California Civil Code 1794(d), including reasonable attorneys' fees...in connection with the commencement and prosecution of this action to, and including, the date of this Offer." (See Declaration of Ashleigh K. Gideon filed July 16, 2026, ¶ 2, Ex. A at ¶ 2.) Defendant argues per these terms, costs incurred after the April 2, 2026, 998 Offer are not recoverable and should be stricken.

The Court

will strike deposition costs of \$550.00[2] from item 4 and expert witness fees of \$1,031.25 from item 8 as Defendant has shown they are not recoverable pursuant to the parties' 998 Offer, which was signed by Plaintiff on April 2, 2026.

The Court

GRANTS the Motion as to deposition costs of \$550.00 from item 4 and expert witness fees of \$1,031.25 from item 8.

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B.

Item 4: Deposition Costs

"Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." (Code. Civ. Proc. § 1033.5(a)(3)(A).)

Defendant

moves to strike costs of \$450.00 in connection with Plaintiff's deposition transcript and \$1,195.40 in connection with court reporter fees for the deposition of Kaneisha Jones from item 4. (See Mot. at 6:7-8.) Defendant argues these costs are not recoverable under § 1033.5(b).

The Court

finds Defendant has not shown these costs are unrecoverable or unreasonable. Defendant's reliance on § 1033.5(b) is misplaced. In relevant part, Code of Civil Procedure § 1033.5(b) provides "The following items are not allowable as costs, except when expressly authorized by law: (1) Fees of experts not ordered by the court...(5) Transcripts of court proceedings not ordered by the court." (Code Civ. Proc. § 1033.5(b).) This section does not provide that transcripts of a plaintiff's deposition or transcription of depositions are not recoverable as costs. On the contrary, § 1033.5(a)(3)(A) expressly provides that transcribing necessary depositions are allowable costs. Accordingly, transcripts of Plaintiff's deposition and court reporter fees incurred to transcribe the deposition of Kaneisha Jones are recoverable and reasonably necessary to litigating this action.

Thus, the

Court DENIES Defendant's Motion to strike these costs.

C.

Item 15: Other

"Costs are

allowable if incurred, whether or not paid.” (Code Civ. Proc. § 1033.5(c).) “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation...Items not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” (Id., § 1033.5(c)(1)-(4).)

Defendant

moves to strike \$199.00 in hotel accommodation costs in relation to the vehicle inspection cost of \$2,148.48 from February 10, 2026. (See Mot. at 6:22-26.) Defendant argues Plaintiff’s Memorandum of Costs includes a screenshot of an invoice that does not appear to be a formal invoice and lacks pertinent information such as the hotel and guest name. (See id., at 6:18-21.)

The Court

finds Defendant properly objects to this cost. Routine expenses for local travel, including parking fees, cab fares, and mileage fees, incurred by attorneys, paralegals, or other law firm employees are not reasonably necessary to conduct of litigation and, thus, cannot be allowed as reimbursable costs. (See *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 775 [finding the supporting declaration of attorney failed to demonstrate how any of these charges were necessary to conduct the litigation, as opposed to being merely convenient].) The Court finds travel and hotel costs for a vehicle inspection are routine to lemon law litigation and thus not recoverable. Further, Plaintiff submits no evidence showing this expense was reasonably necessary to litigation rather than merely convenient or beneficial. (See Code Civ. Proc. § 1033.5(c)(2), (4).)

Thus, the

Court GRANTS Defendant’s Motion to strike \$199.00 in hotel accommodation costs from the February 10, 2026, vehicle inspection cost totaling \$2,148.48.

V.

CONCLUSION

Based on the

foregoing, the Court GRANTS in part Defendant’s Motion to Tax Costs in the amount of \$1,780.25.

The total

amount in costs recoverable to Plaintiffs will be \$5,328.98.

IT
IS SO ORDERED.

DATED: August 13, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.

[2] The Memorandum of Costs
shows a cost of \$550.00, not \$1,581.25. (See MOC at Attachment 4e.)